

Sales and Purchase Agreement

SPA | RSK-SPA-04

This Agreement is made on the date stated below between the Seller and the Buyer (each a "Party") for the sale and purchase of the Product described herein.

DATE OF AGREEMENT

PLACE

CONTRACT NO.

RELATED IMFPA REF.

SELLER

COMPANY NAME

REGISTRATION NO.

COUNTRY

REGISTERED ADDRESS

REPRESENTED BY

POSITION

BUYER

COMPANY NAME

REGISTRATION NO.

COUNTRY

REGISTERED ADDRESS

REPRESENTED BY

POSITION

01 Product, Specification and Quantity

1.1 The Seller shall sell and the Buyer shall purchase the following Product, of merchantable quality and conforming to the specification below.

PRODUCT / COMMODITY

ORIGIN

PACKING / FORM

QUANTITY PER SHIPMENT

TOTAL CONTRACT QUANTITY

QUANTITY TOLERANCE (+/- %)

NUMBER OF SHIPMENTS

SPECIFICATION

PARAMETER	SPECIFICATION	REJECTION LIMIT	TEST METHOD

02 Price

UNIT PRICE

CURRENCY

INCOTERM AND NAMED PLACE

TOTAL VALUE PER SHIPMENT

TOTAL CONTRACT VALUE

- 2.1** The price is fixed for the contract period unless the Parties agree a price adjustment in writing. All taxes, duties and costs beyond the agreed Incoterm are for the account of the Party responsible under that Incoterm.

03 Delivery and Shipment

PORT / PLACE OF
LOADING

PORT / PLACE OF
DISCHARGE

DELIVERY PERIOD

VESSEL / TRANSPORT
NOTICE (DAYS)

- 3.1** The Seller shall give the Buyer written shipment notice with the estimated date, transport details and quantity. Partial shipments and transshipment are permitted unless stated otherwise.
- 3.2** Title and risk pass as provided by the agreed Incoterm; title to the Product passes to the Buyer only upon receipt of full payment.

04 Payment

Payment instrument (mark one):

☐ Irrevocable documentary letter of credit (at sight)

☐ Standby letter of credit (SBLC)

☐ Telegraphic transfer (TT)

☐ Other (specify below)

PAYMENT TERMS AND
DETAILS

ISSUING / PAYING BANK

SWIFT / BIC

- 4.1** Payment shall be made in the contract currency, free of set-off and bank charges to the Seller, against presentation of the documents listed in Section 6. Late payment bears interest at ____ % per annum.

05 Inspection and Claims

- 5.1** Quality and quantity shall be certified by an independent inspector at the place stated below. Their certificate is final and binding for the shipment unless manifestly erroneous.

INDEPENDENT
INSPECTOR

INSPECTION AT (LOAD
/ DISCHARGE)

COSTS BORNE BY

- 5.2** The Buyer shall notify claims in writing with supporting evidence within **thirty (30) days** of discharge. Claims not notified in time are waived. The Seller's liability is limited to replacement or refund of the affected quantity.

06 Documents

The Seller shall provide, as applicable:

☐ Commercial invoice

☐ Packing list

☐ Bill of lading / air waybill

☐ Certificate of origin

☐ Quality and quantity certificate

☐ Phytosanitary / other certificates

07 Force Majeure

- 7.1** Neither Party is liable for failure or delay caused by events beyond its reasonable control, such as natural disaster, war, embargo, strikes or government action, provided it notifies the other Party promptly. If the event lasts longer than sixty (60) days, either Party may terminate the affected shipments without liability.

08 Default and Termination

- 8.1** If a Party materially breaches this Agreement and fails to remedy it within fifteen (15) days of written notice, the other Party may suspend performance or terminate and claim direct damages.

09 Compliance

- 9.1** Each Party represents that it complies with applicable sanctions, export control, anti-corruption and anti-money-laundering laws, and shall provide the KYC information reasonably requested by the other Party.

10 Confidentiality and Non-Circumvention

10.1 The terms of this Agreement are confidential. Any separate NCNDA and IMFPA between the Parties or their intermediaries remain in force and are not affected by this Agreement.

11 Term

11.1 This Agreement takes effect on signature and remains in force until all shipments are delivered and paid, unless terminated earlier under Section 8 or Section 7.

12 Governing Law and Dispute Resolution

12.1 Disputes shall first be discussed in good faith for thirty (30) days and, failing agreement, finally settled as stated below.

GOVERNING LAW	
ARBITRATION RULES / COMPETENT COURTS	
SEAT / PLACE OF JURISDICTION	LANGUAGE OF PROCEEDINGS

13 General Provisions

13.1 This Agreement is the entire agreement on its subject matter and may be amended only in writing signed by both Parties. If any provision is invalid, the remainder stays in force. Neither Party may assign it without written consent.

13.2 It may be signed in counterparts and by electronic signature or scanned copy, each deemed an original.

14 Signatures

Executed by the duly authorised representatives of the Parties:

SELLER: NAME		BUYER: NAME	
TITLE		TITLE	
DATE		DATE	

SELLER: SIGNATURE AND STAMP	BUYER: SIGNATURE AND STAMP
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